



DRAFT · FOR DISCUSSION

Fleet Manager and Mechanical Services

Terms of Reference

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Date	13 September 2026
Company	LG Howson Ltd
Contractor / post holder	Alex Kidd
Owner	Dean Bradley, Managing Director
Status	Not for signature until Sections 1, 9 and 10 are completed

BEFORE YOU SIGN

This document defines a role. It does not by itself determine employment status. Complete Section 1.3 before signature.

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READING THIS DOCUMENT

Items shown in a tinted box, for example [name] or £[], are outstanding and must be completed before signature. Sections 1.3, 9 and 10 carry the majority of them.

1 Purpose and standing

- 1.1** This document defines the Fleet Manager and Mechanical Services role: the duties, the authority, the reporting, the standards and the measures. It separates a **standing management duty** (Part A) from **reactive mechanical work** (Part B), because the two cannot be managed on the same basis.
- 1.2** This document is deliberately status-neutral. It works on either of two routes:
- **Route A – Employed.** This document becomes the job description and objectives. The Subcontract Mechanic Agreement is terminated and replaced by a contract of employment. Section 10 is replaced by salary, hours and benefits.
 - **Route B – Contract for services.** This document is attached as Schedule 4 to the Subcontract Mechanic Agreement, and clause 5.3 of that agreement is amended so that Part A is a standing retained duty, not a bookable task. Section 10 records the retainer.
- 1.3** **Status must be resolved before signature.** The combination of a standing management duty, a company van, container, tools and fuel, weekly reporting to the Company and a defined role inside the business points materially towards employment. Confirm the position with the Company's accountant or employment solicitor and record the outcome below.

Status route selected	[A – employed] / [B – contract for services]
Advised by	[name]
Date of advice	[date]

- 1.4** Reports to: Dean Bradley, LG Howson Ltd. Deputy approver: [name].
- 1.5** Effective date: [date]. First formal review at 30 calendar days, then monthly for three months, then quarterly.

2 Fleet in scope

- 2.1** The role covers every asset on the **Fleet Asset Register** at Appendix A, which must be completed and signed before the effective date. Indicative categories:
- Vans and cars
 - Tippers and other goods vehicles, including any over 3,500 kg GVW
 - Plant trailers and towed equipment
 - Excavators, dumpers, rollers, telehandlers
 - Small plant, breakers, compactors, generators, pumps
 - Lifting accessories: chains, slings, shackles, quick hitches, lifting eyes
- 2.2** Assets are added to or removed from the register only by written notice from the Company. An asset not on the register is not in scope, and the Fleet Manager carries no responsibility for it.
- 2.3** Howson Pools Ltd assets: [in scope / out of scope / in scope and recharged]. Where in scope, work is authorised through LG Howson Ltd and recharged under the agreed intercompany arrangement.

PART A

Fleet management — standing duty

3 Statutory and regulatory compliance

- 3.1** Maintain a live **Compliance Register** covering every in-scope asset, showing the next due date, the responsible person and the evidence reference. Minimum content at Appendix B.
- 3.2** Ensure nothing in the register runs overdue. Where a date cannot be met, escalate to Dean **before** the expiry date, not after, with the asset, the date, the consequence and the proposed action.
- 3.3** Items to be tracked and evidenced. Frequencies are indicative and must be confirmed against the manufacturer's schedule, the insurer's requirements and any Operator's Licence undertakings:
- MOT and annual test
 - Vehicle excise duty and insurance renewal
 - Planned servicing and safety inspections
 - LOLER thorough examination of lifting equipment and lifting accessories
 - PUWER inspection of work equipment
 - Tachograph calibration, and driver card and vehicle unit downloads, where applicable
 - Quick hitch checks and excavator lifting duty certification
 - Statutory inspections of hired-in plant, confirmed at the point of hire
- 3.4** **Operator's Licence.** Establish and record whether the Company requires a goods vehicle Operator's Licence for any vehicle in scope, and if so its type, the nominated Transport Manager, the disc allocation and the inspection frequency stated in the licence undertakings. Where a licence is held, the Fleet Manager maintains the 15-month rolling inspection planner and the driver defect reporting records to the standard required by the Traffic Commissioner. This does not transfer the Company's operator duties.
- 3.5** **Drivers.** Maintain a driver register with licence category, DVLA check date and result, and any restrictions. Licence checks at least every six months, or more frequently where points are recorded. Flag immediately any driver whose entitlement does not cover the vehicle they are using.
- 3.6** **Insurance fit.** Confirm before any use that the Company's motor policy covers the vehicle, the driver and the actual use. Report immediately any use falling outside cover, and stop it.

4 Planned maintenance and availability

- 4.1** Maintain a rolling **six-week lookahead** of planned maintenance, inspections and off-road time, issued to Dean each Friday and reconciled against the site programme, so that plant is not removed from a live job without notice.
- 4.2** Plan maintenance around operational demand where possible. Where a clash is unavoidable, present the options and the consequences; the Company decides.

- 4.3** Maintain a **defect log**. Every defect has a severity, an owner, a next action and a date. Defects rendering an asset unsafe are marked **DO NOT USE**, keys controlled where practicable, and Dean notified the same day.
- 4.4** Own the daily walkaround and pre-use check regime: ensure operators are issued check sheets, that completed sheets are collected, and that reported defects are entered into the log within one working day. Audit compliance monthly and report the rate.

5 Parts, suppliers, hire and cost

- 5.1** Source parts and consumables within the approval limits at Section 9. Obtain comparative pricing for any single item above the quote threshold.
- 5.2** Manage the fleet supplier and hire relationships: servicing agents, tyre supply, breakdown and recovery, plant hire, specialist inspection bodies. Maintain contact details, account references and renewal dates.
- 5.3** Where an asset is off the road beyond the agreed tolerance, propose the hire-versus-repair option with cost and timescale. The Company decides.
- 5.4** Reconcile fuel card transactions against vehicle and mileage monthly. Flag anomalies.
- 5.5** Report monthly fleet spend by asset against budget, split into labour, parts, hire, fuel and third-party.

6 Records and system of record

- 6.1** The system of record is **[Notion fleet database / named Google Drive folder]**. Records held only on a personal device, in a personal notebook or in a private messaging thread do not satisfy this role.
- 6.2** Every asset has a record holding: identification, ownership or finance status, service history, statutory certificates, defect history, cost history and photographs.
- 6.3** All records remain Company property and must be current at all times, not reconstructed at review. On the ending of the role, the register and forward schedule are handed over complete and up to date within five working days.

7 Reporting cadence

Frequency	Output	To
Daily, on active days	End of work update: completed, outstanding, parts awaited, assets unavailable, next actions	Dean
Weekly, Friday	Six-week maintenance lookahead and compliance exceptions	Dean
Monthly	Fleet report: compliance status, availability, defect position, spend against budget, check-sheet audit rate	Dean

Frequency	Output	To
Immediately	Any asset made unsafe, any statutory date at risk, any insurance or licence gap, any spend heading above limit	Dean

PART B

Mechanical services — booked work

8 Mechanical duties

- 8.1** Inspection, servicing, fault finding, diagnosis and repair of in-scope assets, to the manufacturer's requirements and applicable law, using safe methods and suitable equipment.
- 8.2** Follow accepted work through to resolution or formal handover. Where the fault is beyond competence, arrange approved specialist support rather than leaving it open.
- 8.3** Complete a **job card** for every task by the end of the next working day: asset ID, date, mileage or hours, diagnosis, work done, parts, labour, travel, tests, outstanding defects and the competent person releasing the asset.
- 8.4** No asset returns to service without release evidence from a competent person. Statutory examinations and specialist work require the appropriate competence and independence; routine servicing does not substitute for them.
- 8.5** **Priority.** Company work booked or committed under this role takes precedence over external customers during agreed committed time. Outside committed time, external work is unrestricted, subject to Section 12.

9 Authority and limits

Item	Limit
Parts or repair, single item, no prior approval	£[]
Parts or repair, per asset per month, no prior approval	£[]
Comparative quotes required above	£[]
Plant or vehicle hire	Prior written approval in all cases
Engaging a third-party supplier at Company cost	Prior written approval above £[]
Emergency make-safe action, no prior approval	£[], notify Dean same day
Approver	Dean Bradley; deputy [name]

- 9.1 No splitting of orders** to stay under a limit. Where approval cannot be obtained, stop and seek instructions; take only the minimum action reasonably necessary to prevent imminent harm.

10 Time, commitment and remuneration

- 10.1 Committed time.** [] days or [] hours per week for Part A fleet management, on [days]. This is a standing commitment, not a bookable slot, and is not displaced by external work without prior agreement.

- 10.2** Part B mechanical work is booked in addition and confirmed in writing under clause 4.2 of the Subcontract Mechanic Agreement, or forms part of the employed hours under Route A.

- 10.3** Remuneration:

Item	Agreed detail
Part A retainer or salary	£[] per [month / annum]
Part B rate	£[] per hour OR £[] per day of [] hours
Travel, call out, out of hours	£[] / £[] / £[]
Parts markup	[at cost / []% markup]
Asset use: van, container, tools, fuel	[no cash charge, forming part of the consideration / £[] per []]
Tax and VAT treatment of asset use confirmed by	[name] on [date]
Rate review	Annually on [date], by written agreement only

- 10.4** The asset-use arrangement at 10.3 must be checked for tax, VAT and benefit-in-kind treatment before signature. A “no cash charge” arrangement is consideration in kind, not an absence of value.

11 Company obligations

- 11.1** Provide the complete asset register, ownership and finance status, and available service history at commencement.
- 11.2** Provide safe access to assets, a suitable and safe working location, and reasonable notice of operational demands.
- 11.3** Make decisions and give approvals within [one working day] of a properly presented request, or accept the consequence of the delay.
- 11.4** Maintain motor and plant insurance, and confirm in writing that cover extends to the Fleet Manager, any approved substitute and the actual use.

- 11.5** Retain and discharge the Company's own duties as owner, operator and employer. Nothing in this document transfers those duties.
- 11.6** Resolve the land position for the 40 ft container, including the landholder's identity and the access and collection arrangement, and record it at Appendix A.

12 Restrictions

- 12.1** Company assets — van, container, tools, parts, fuel and accounts — are for authorised Company work only, except where a specific written permission is recorded in Schedule 2 of the Subcontract Mechanic Agreement.
- 12.2** No servicing or repair of another customer's vehicles or plant in the Company container, or using Company tools, parts or fuel, without express written permission.
- 12.3** During this role and for **[6]** months afterwards, do not solicit the Company's clients, staff or subcontractors for competing services. This restriction is limited to what is reasonably necessary to protect the Company's business connections.
- 12.4** Disclose in writing any existing or proposed work for a competitor of the Company, or any arrangement that could conflict with the fleet role, before accepting it.
- 12.5** Confidential information — customer, pricing, fleet, cost and security information — is used only for authorised purposes and is not held on a personal device as the sole copy.

13 Out of scope

For the avoidance of doubt, the role does not include:

- Undisclosed pre-existing defects not identified in the commencement survey at Appendix A
- Statutory examinations requiring an independent competent person
- Asset purchase and disposal decisions, which remain with the Company
- Operator's Licence holding or Transport Manager duties, unless separately and expressly appointed
- Site operational decisions on plant deployment

14 Measures and review

- 14.1** Performance is measured against Appendix C. These are service standards, not automatic financial penalties.
- 14.2** Review points: 30 days from the effective date, then monthly for three months, then quarterly. Each review records the evidence, Alex's response, the agreed outcome, and the actions with owners and dates.
- 14.3** Where a measure is missed, the Company will state the fact, the impact and the required correction with a reasonable deadline, and allow a response, before any formal step under clause 12 of the Subcontract Mechanic Agreement or the applicable employment procedure.
- 14.4** This document may be varied only in writing, signed by both parties.

15 Acceptance

We agree the role, duties, authority, measures and commercial particulars set out above and in Appendices A to C.

For LG Howson Ltd

Name and position	
Signature	
Date	

Alex Kidd [personally / for [entity]]

Name and capacity	
Signature	
Date	

COMPLETION CHECK

Do not sign until Section 1.3 (status route), Section 9 (authority limits) and Section 10 (time and remuneration) are complete, and Appendix A is completed, photographed and signed.

APPENDIX A

Fleet asset register and commencement survey

To be completed jointly and photographed before the effective date. One row per asset; copy the block as required.

Field	Entry
Asset type and description	
Registration / serial / fleet number	
Year, make, model	
Legal owner / finance or hire agreement	
Current location and keeper	
Mileage or hours at survey	
Last service and next due	
Last MOT or test and next due	
Last statutory examination and next due	
Known defects at survey	
Condition and photograph reference	
In scope from	

Container position

Item	Position
Landholder	[]
Written access permission	[attached / outstanding]
Collection arrangement	[]
Resolved by	[date]

APPENDIX B

Compliance register, minimum content

Frequencies below are indicative. Confirm each against the manufacturer's schedule, the insurer's requirements and any Operator's Licence undertakings before the register goes live.

Item	Applies to	Frequency	Evidence held
MOT / annual test	Vehicles and trailers as applicable	Annual, or per class	Certificate
Vehicle excise duty	Road-going vehicles	Annual	DVLA record
Motor insurance	Road-going vehicles	Per policy	Policy schedule
Safety inspection	Goods vehicles under an O-Licence	Per licence undertaking	Inspection sheet
Planned service	All powered assets	Per manufacturer	Job card
LOLER thorough examination	Lifting equipment and accessories	Per regulation and duty	Report of thorough examination
PUWER inspection	Work equipment	Per risk assessment	Inspection record
Quick hitch check	Excavators	Per manufacturer	Check record
Tachograph calibration	Where fitted and in scope	Per regulation	Calibration certificate
Tachograph downloads	Where applicable	Driver card and vehicle unit, per regulation	Download log
Driver licence check	All drivers	Six-monthly minimum	DVLA check record
Daily walkaround check	Vehicles and plant in use	Each day of use	Check sheet
Hired-in plant certification	All hire	At point of hire	Supplier certificate

APPENDIX C

Measures

Service standards for the role. Measured at each review point under Section 14.

Measure	Target	Evidence
Statutory items overdue	Zero at all times	Compliance register
Statutory items at risk escalated before expiry	100%	Escalation record
Fleet availability, in-scope assets fit for use	[]% monthly	Defect log and register
Unplanned off-road days	Below [] per month	Defect log
Committed time honoured	100%, exceptions agreed in advance	Attendance log
Accepted booking displaced by external work without agreement	Zero	Booking record
Job card completed by end of next working day	100%	Job cards
Weekly six-week lookahead issued by Friday	100%	Issued report
Monthly fleet report issued by [working day]	100%	Issued report
Daily check sheets returned and logged	[]%	Monthly audit
Spend within approval limits	100%	Purchase records
Fleet spend against budget	Within []%	Monthly report
Unapproved private use of Company assets	Zero	Inspection and fuel reconciliation

End of document